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OUTSIDE COUNSEL PLAYBOOK · 2026 EDITION

The patent-forward outside counsel playbook *for tech companies.*

The problems tech companies face, the outside-counsel checklist that solves them, and the fixed-fee engagement built to deliver it — continuously.

01 · PROBLEM	02 · CHECKLIST	03 · ENGAGEMENT
Where value leaks today	IP to exit, in 12 steps	Continuous, fixed-fee

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5 PAGES · INFORMATIONAL
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THE PROBLEM

Six places where tech companies *quietly lose value* — and only discover it during diligence.

Episodic legal work — calling counsel only when a contract needs review or a patent needs filing — used to be sufficient. It is not sufficient when intellectual property, AI risk, and corporate governance evolve continuously alongside the product. Here is where the value actually leaks.

FAILURE MODE · 01

Patent strategy gets forgotten.

Companies file an initial patent, then go silent for 18 months until a Series A checklist resurfaces it. By then the product has moved and the claims no longer match what ships.

SURFACES DURING SERIES A DILIGENCE

FAILURE MODE · 02

Assignment chain has gaps.

Inventors leave, contractors come and go, and IP assignments quietly go un-executed. This is the single most common deal-breaker raised in IP diligence engagements.

MOST COMMON DEAL-BREAKER

FAILURE MODE · 03

Generic templates fail diligence.

Employment, vendor, and customer agreements pulled from generic templates rarely survive scrutiny — especially on AI output ownership, data rights, and IP allocation.

COSTS NEGOTIATING LEVERAGE

FAILURE MODE · 04

Filings miss strategic windows.

Foreign rights are lost the day a product becomes public without a filing on file. Pre-partnership and pre-exit continuations are forgotten when they matter most.

PERMANENT LOSS OF FOREIGN RIGHTS

FAILURE MODE · 05

Governance is reconstructed at diligence.

Board minutes, written consents, and investor agreements get back-built under deadline pressure. Reconstruction is expensive and reads as company immaturity to sophisticated investors.

SLOWS FINANCING & M&A TIMELINES

FAILURE MODE · 06

Hourly billing is unpredictable.

Open-ended hourly engagements make legal a line item no CFO can plan against. Boards hate it; founders defer needed work because of it; value erodes silently.

BUDGET SURPRISES EVERY QUARTER

– *Each of these failure modes is preventable with a continuous engagement that follows the checklist on the next page.*

THE CHECKLIST

The outside GC checklist for tech companies — *from IP to exit*, in 12 steps.

A continuous engagement covers four phases, twelve standing items. Each phase builds on the one before it; nothing is bolted on at diligence.

PHASE 01 · START HERE

IP & patent positioning

Treat the portfolio as a living asset, mapped to the product roadmap and revenue map continuously.

01 **Portfolio strategy**
Quarterly review against product roadmap & revenue map.

02 **Claim-product map**
Every revenue feature covered by an issued or pending claim.

03 **Assignment chain**
Every inventor on every filing has a signed IP assignment.

PHASE 02 · PRESERVE VALUE

Drafting that survives diligence

Bespoke agreements that protect IP, equity, and commercial position — not generic templates.

04 **Employment & contractor**
IP assignment, confidentiality, AI output ownership.

05 **Equity & option grants**
Plans, grants, vesting docs aligned with board approvals.

06 **Customer & vendor**
AI use, data rights, indemnity, IP allocation reviewed.

PHASE 03 · STAY OWNABLE

Corporate governance hygiene

Run the company like an entity that wants to be financed or acquired cleanly.

07 **Board minutes & consents**
Documented for every material decision; signed; filed.

08 **Investor agreement hygiene**
Voting, ROFR/co-sale, side letters tracked as cap table evolves.

09 **Compliance monitoring**
Privacy, AI rules, sector regulators — never surprised.

PHASE 04 · FINISH HERE

Market posture & exit-readiness

Position the company so a Series B lead or strategic acquirer sees a story, not a scramble.

10 **Competitor surveillance**
Monthly briefing on filings, M&A, launches — actionable items only.

11 **Documented FTO posture**
Against the two or three competitor portfolios most likely raised.

12 **Pre-exit continuations**
Filed 6–12 months before the first exit conversation begins.

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OUR CAPABILITIES

Four capability domains, *one continuous engagement* — mapped to every item on the checklist.

Whiteford Taylor & Preston is a full-service firm with national scale; Schell IP brings Mountain West venture relationships and patent depth. Together we cover every line of the checklist on the previous page with the same team you start with.

DOMAIN 01 · ITEMS 01–03, 10–12

IP & patent practice

- Patent prosecution & litigation; USPTO bar membership.
- Portfolio strategy, claim drafting, continuations playbook.
- Freedom-to-operate analysis & design-around counsel.
- Trade-secret hygiene & AI output ownership.
- Competitor surveillance & monthly briefings.

DOMAIN 02 · ITEMS 05, 07–08

Corporate & venture

- Entity formation, equity plans, option grants & vesting.
- Board governance & corporate-book maintenance.
- Term sheets, financings, stockholder & voting agreements.
- M&A and exit transactions; founder economics.
- Mountain West venture community embedded since 2012.

DOMAIN 03 · ITEMS 04, 06

Commercial contracts

- AI-aware customer agreements & capability-claim review.
- Vendor terms covering training, retention, & data flow.
- Employment & contractor IP assignment by jurisdiction.
- Indemnity, data rights, IP allocation provisions.
- Post-employment restrictions appropriate to role.

DOMAIN 04 · ITEM 09

Compliance & risk

- Privacy & data-protection programs (state & federal).
- AI-specific regulatory monitoring & governance.
- Sector regulators (fintech, health, energy) as applicable.
- Advertising law & consumer-protection review.
- Employment-law change monitoring & advisory.

HOW WE DELIVER

Continuously, on a fixed monthly fee.

CADENCE	REVISION	TIERS	FOOTPRINT
Monthly fixed fee	Quarterly true-up	Foundation → Custom	Mountain West + national

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NEXT STEPS

Book a no-cost conversation with Jeff to *scope the right engagement* for your stage.

The conversation takes 30 minutes. We discuss the company's current stage, the patent portfolio if any, the cadence of corporate activity, and the specific questions on the founder's or general counsel's mind. From there we propose a tier and a starting scope.



Jeff Schell

MANAGING PARTNER, MOUNTAIN WEST

Whiteford Taylor & Preston · Patent Attorney · AI Advisor

Jeff is Managing Partner of Whiteford's Mountain West practice and an AI legal advisor to technology companies. A patent attorney, venture capitalist, and former two-time founder, he works at the intersection of intellectual property, AI risk, and venture growth. Since 2012, his work has supported the creation of over $100 million in transaction and enterprise value across Colorado's technology ecosystem.

$100M+
TRANSACTION & ENTERPRISE VALUE SUPPORTED SINCE 2012

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2x
FOUNDER BEFORE THIS PRACTICE

BOOK A CONSULTATION

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PICK A TIME

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